CHAPTER 9 · DEEP DIVE · A HOUSE DIVIDED

Black Codes & Sharecropping

How the old order fought to rebuild slavery in all but name — through law, and through debt. 1865–1877.

Name: _____ **Period:** _____ **Date:** _____

How the old order fought to rebuild slavery in all but name — through law, and through debt. 1865–1877.

If people are legally ‘free’ but cannot leave, cannot choose their work, and can never get out of debt, how free are they really?

The Black Codes

1865–66

As soon as the war ended, Southern state governments under Johnson's lenient plan passed the Black Codes — laws designed to control freedpeople and force them back to work for white landowners.

Under vagrancy laws, a Black person without a labor contract could be arrested and hired out. The codes restricted where freedpeople could live, what jobs they could hold, and whether they could own guns or testify in court. It was freedom in name, bondage in practice.

“Slavery Is Dead?”

THOMAS NAST, 1867

Nast's bitter cartoon asks whether slavery is truly dead when a Black man can still be whipped and sold into forced labor under a new set of laws. The question mark is the whole point.

“Slavery Is Dead?” — wood engraving by Thomas Nast, Harper's Weekly, 1867, public domain (Library of Congress).

Sharecropping

THE TRAP OF DEBT

Congress struck down the worst Black Codes — but the economic trap remained. With no land of their own, most freedpeople became sharecroppers: they farmed a landowner's land in exchange for a share of the crop.

It sounded fair. In practice, it was a cycle of debt. Sharecroppers had to borrow against the future crop for seed, tools, and food at inflated prices. When the harvest came, they often owed more than they earned — and the law bound them to keep working until the debt was paid. The debt almost never ended.

The five military districts, 1867 — map, © ShadowDog Digital Studios (SDS Digital Collection).

Continuity and Change

WHY IT MATTERS

This is a story of continuity and change. What changed was real: slavery was legally gone, families could not be sold apart, and freedpeople had new rights on paper.

But what continued was also powerful: the same people still controlled the land, the labor, and the law — and found new ways to keep Black Southerners poor and dependent. Freedom had arrived, but economic justice had not.

What Changed, What Stayed

YOUR TURN

You'll compare slavery, the Black Codes, and sharecropping, and practice continuity and change — judging how much freedom really changed daily life.